

Ajay Bahadur Singh v. State of U.P.

Allahabad High Court · Division Bench · 22 April 2019 · WRIT-C No. 13397 of 2019 · **Writ disposed; arrears dispute relegated to clause 6.5 forum.**

HEADNOTE

Writ challenging excessive arrears in electricity bills for April 2018–March 2019 was disposed of by consent. The consumer, who accepted the corrected monthly charges, was given liberty to raise the arrears dispute before the alternative forum under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, on depositing current monthly billed amounts; sums already paid were to be adjusted.

FACTUAL SUMMARY

Ajay Bahadur Singh challenged electricity bills for April 2018 to March 2019. He accepted that the monthly charges had been corrected, but said the arrears shown in those bills were excessive and needed rectification. He offered to pay the current monthly dues as billed and asked that the arrears dispute be sent to the alternative forum under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the electricity department did not object.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

arrears-dispute-alternative-forum

HOLDING

Where the consumer accepts the corrected monthly electricity charges but disputes the arrears shown in those bills, and is willing to pay current monthly dues as billed, the writ petition may be disposed of with liberty to raise the arrears dispute before the alternative forum under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, within a stipulated time; current monthly billed amounts are to be deposited meanwhile, arrears are to be paid on resolution of the dispute, and amounts already deposited are to be adjusted. ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS DEMANDED IN THE APRIL 2018–MARCH 2019 BILLS WERE EXCESSIVE OR INCORRECT

Left to the paragraph 6.5 alternative forum; the Court did not examine the arrears on merits. ¶ 2-4